[Translation from Chinese to English]

China Commerce Puhui Holdings Group Co., Ltd.

Advanced Solar Power (Hangzhou) Inc.

Xinjiang Jinglan Fresh Fruit Supply Chain Co., Ltd.

Joint Venture Agreement

Signing Place:

Date: Day Month 2023

Joint Venture Agreement

New Zealand Society of Translators and Interpreters Incorporated
Liang Tian
TRANSLATOR
Chinese → English
Member

Translator statement: This is a correct translation of the attached copy of the original document. It does not establish the authenticity of the original or the correctness of the statements therein.

Translator: Liang Tian (Member of NZSTI 1251) Mobile: 0220623288 Email:xyztrans2004@gmail.com

Signature:

Date: 16 July 2025

Party A: China Commerce Puhui Holdings Group Co., Ltd. (hereinafter referred to as “Party A”)

Party B: Advanced Solar Power (Hangzhou) Inc. (hereinafter referred to as “Party B”)

Party C: Xinjiang Jinglan Fresh Fruit Supply Chain Co., Ltd. (hereinafter referred to as “Party C”)

Whereas:

1. Party A, China Commerce Puhui Holding Group Co., Ltd., was established in May 2021 and is a professional company established by China Commerce Holdings Group Co., Ltd. to develop new agriculture, new business and new energy.

2. Party B, Advanced Solar Power (Hangzhou) Inc., was established in May 2008 by Professor Xuanzi Wu, an international photovoltaic expert, and others, with the vision of "building a world-class solar cell manufacturing enterprise", adhering to the scientific enterprise development path of "independent innovation, first strong and then scale", focusing on the research and development and production of cadmium telluride thin film photovoltaic technology. It has successfully broken foreign technology monopolies and was the first in China to industrialize cadmium telluride thin-film solar energy technology through independent research and development.

3. Party C, Xinjiang Jinglan Fresh Fruit Supply Chain Co., Ltd. was established in July 2020, which is a wholly-owned subsidiary of Jingxi Agricultural Group, focuses on agricultural product seedling cultivation, orchard operation and maintenance, agricultural digitalization, and product supply chain.

4. The three parties intend to "join forces" to carry out comprehensive cooperation in the fields of agriculture and new energy. Based on the principles of "equality and mutual benefit, complementary advantages, mutual respect, mutual trust, and win-win cooperation", they intend to facilitate the Orchard Land-Photovoltaic Project in Yichuan County, Yan'an City, Shaanxi Province. In order to carry out the next step of work as soon as possible, the three parties hereby sign this agreement. The detailed contents are as follows:

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I. Investment Content and Construction Period

1. Investment Content: The three parties plan to jointly invest in the Orchard Land-Photovoltaic Project in Yichuan County, Yan'an City, Shaanxi Province, plant 200 mu of dwarf seedlings in Yichuan County, with a total of 40,000 plants, lay 75 mu of photovoltaic area, and install a capacity of 3.78MWp.

2. Construction period: After the project meets the construction conditions, all parties should actively cooperate and strive to complete it in July 2023.

II. Investment Entity

The three parties unanimously agree to jointly establish a new company as the main entity of the Orchard Land-Photovoltaic Project in Yichuan County, Yan'an City, Shaanxi Province (hereinafter referred to as the "Joint Venture Company"). The name of the new company is Beijing Jinglong Nongguang Technology Co., Ltd. (subject to the approval of the business registration).

Company Type: Limited Company

Operation Term: Long-term

III. Total investment and capital contribution

The joint venture company established by the three parties intends to have a registered capital of CNY 100 million, of which Party A subscribes to CNY 82 million, accounting for 82%; Party B subscribes to CNY 9 million, accounting for 9%; Party C subscribes to CNY 9 million, accounting for 9%; more capital may be made to the project according to the progress of project development and funding needs, and the amount of capital increase shall be confirmed through negotiation by all parties.

Each party may pay its capital contribution according to the progress of the project, and the equity ratio is as follows:

The equity ratio is as follows:

No.	Shareholder Name	Subscribed Capital	Equity Ratio
1	China Commerce Puhui Holdings Group Co., Ltd.	CNY 82 million	82%
2	Advanced Solar Power (Hangzhou) Inc.	CNY 9 million	9%
3	Xinjiang Jinglan Fresh Fruit Supply Chain Co., Ltd.	CNY 9 million	9%

IV. Governance and Operation of the Joint Venture Company

1. The joint venture company shall establish a Board of Directors and a Board of Supervisors in accordance with the provisions of the Company Law and the company's Articles of Association, and shall operate strictly in accordance with the Articles of Association.

2. A Board of Directors and a Chairperson shall be established. The Board of Directors shall consist of 5 members, of which Party A shall nominate 3 directors, and each of the other parties shall nominate 1 director. Directors shall be elected by the General Meeting of Shareholders. The Chairperson shall be elected by the Board of Directors and shall serve a term of 3 years.

3. A Board of Supervisors shall be established, and each shareholder shall nominate 1 supervisor.

4. The joint venture company shall form a management team, including a General Manager, who shall be appointed by the Board of Directors. The Financial Officer and other members of the management team shall be nominated by the General Manager and appointed by the Board of Directors.

V. Cooperation Plan

1. After this Agreement is signed, all parties shall promptly initiate internal procedures, develop a reverse work schedule, and establish the joint venture company.

2. All parties shall actively facilitate all aspects of the project investment in accordance with the content and vision of Proposal No. 04533 of the 14th National Committee of the Chinese People's Political Consultative Conference, striving for early completion of the construction.

3. If the joint venture company fails to obtain necessary government approvals within 12 months of its registration, or if the project cannot proceed due to policy changes or other force majeure factors, the joint venture company shall be dissolved.

VI. Confidentiality Obligations

All parties shall maintain confidentiality of all commercial secrets (including technical and operational secrets) obtained or learned during the cooperation and joint venture period. Without the prior consent of the other party, such information shall not be used for any commercial activities or disclosed to any third party in any form.

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VII. Liability for breach of contract

1. Each party to the agreement shall be responsible for the authenticity of the information provided in this agreement. If there is any false statement, the breaching party shall bear the corresponding legal liability.

2. If one party or a person nominated by one party to serve in the joint venture company violates laws and regulations, the articles of association or management system of the joint venture company, causing losses, insolvency or administrative or criminal liability to the joint venture company, the party shall compensate the other parties for all economic losses.

3. Each party shall pay the capital contribution in full and on time in accordance with the provisions of this agreement and the Articles of Association. Any party that is overdue (the defaulting party) shall bear the default liability to the other parties that have paid in full (the non-defaulting parties). The defaulting party shall pay the non-defaulting parties a daily penalty equal to 0.01% of the outstanding amount for each day of delay. If a party fails to make a capital contribution by the due date and remains in default for more than [sixty (60)] days after being formally notified by the other parties, the non-defaulting parties shall have the right to either adjust the equity ratio based on the actual paid-in capital of each party, or to acquire the unpaid equity portion of the defaulting party. Thereafter, the shareholding ratio of each party shall be adjusted accordingly based on the actual capital contributions made.

VIII. Applicable Law and Dispute Resolution

1. The establishment, validity, interpretation, performance and dispute resolution of this agreement shall be governed by and interpreted in accordance with the laws of the People's Republic of China.

2. During the validity period of this Agreement, any dispute between the parties shall be resolved through negotiation.

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If the parties are unable to reach an agreement on the disputed matters through negotiation, the case shall be under the jurisdiction of the People's Court where the plaintiff company is registered. All costs shall be borne by the losing party, including but not limited to case filing fees, preservation fees, legal fees for the winning party, reasonable travel expenses, and other related costs.

3. If the joint venture company is unable to operate, or if the performance of this agreement becomes difficult or impossible due to force majeure, the affected party shall immediately inform the other parties of the situation. Based on the extent of the impact or damage to the operation of the Joint Venture, the parties shall decide through negotiation whether to amend or suspend the performance of this agreement, or to stop the operating activities of the Joint Venture, or to dissolve the Joint Venture, so as to avoid or minimize the losses caused to both parties.

9. Entry into Force and Other Provisions

1. All parties to this agreement have reached a consensus on the terms of this agreement. This agreement shall take effect immediately upon being signed by the authorised representatives of all parties and affixed with their official seals.

2. For matters not covered in this agreement, all parties may sign a supplementary agreement, which shall have the same effect as this agreement.

3. This agreement is made in six (6) copies, with each party holding two (2) copies, all of which have the same force and validity.

(No text below)

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(This page is the signature page of the Joint Venture Agreement)

Party A: China Commerce Puhui Holdings Group Co., Ltd (official seal)

China Commerce
Puhui Holdings
Group Co., Ltd

Legal representative/authorized representative (signature): Feng Ling (signature)

Party B: Advanced Solar Power (Hangzhou) Inc. (official seal)

Advanced Solar
Power
(Hangzhou) Inc.

Legal representative/authorized representative (signature): Ben Wu (signature)

Party C: Xinjiang Jinglan Fresh Fruit Supply Chain Co., Ltd. (official seal)

Xinjiang Jinglan
Fresh Fruit Supply
Chain Co., Ltd.

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Legal representative/authorized representative (signature): Hua Liang

2023 Month Day

中商普惠控股集团有限公司
龙焱能源科技（杭州）有限公司
新疆景澜鲜果供应链有限责任公司

合资协议

签约地点：

时间：二〇二三年　月　日

合资协议

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甲方：中商普惠控股集团有限公司（以下简称“甲方”）

乙方：龙焱能源科技（杭州）有限公司（以下简称“乙方”）

丙方：新疆景澜鲜果供应链有限责任公司（以下简称“丙方”）

鉴于：

1、甲方中商普惠控股集团有限公司成立于 2021 年 5 月，是中商控股集团有限公司为拓展新农业、新商业、新能源设立的专业公司。

2、乙方龙焱能源科技（杭州）有限公司成立于2008年5月由国际光伏专家吴选之教授等人创建，以“建世界一流的太阳能电池制造企业”为发展愿景，坚持走“自主创新、先强后大”的科学化企业发展道路，专注与碲化镉薄膜光伏技术研发及生产，成功打破国外技术垄断，率先在中国实现了完全自主研发碲化镉薄膜太阳能技术产业化。

3、丙方新疆景澜鲜果供应链有限责任公司成立于2020年7月，是景曦农业集团全资子公司，专注于农业产品种苗培育、果园运维，农业数字化、产品应链。

4、三方拟“强强联合”，在农业及新能源领域开展全面合作，本着“平等互利、优势互补、互相尊重、互相信任、合作共赢”的原则，拟促成陕西省延安市宜川县园光互补项目，为尽快开展下一步工作，三方特签订本协议，具体内容如下：

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一、投资内容及建设周期

1、投资内容：三方拟共同投资陕西省延安市宜川县园光互补项目，在宜川县种植矮化苗木 200 亩，总量 40000 株，铺设光伏面积 75 亩，装机容量 3.78MWp。

2、建设周期：项目自具备施工条件后，各方应积极配合，争取在 2023 年 7 月份完工。

二、投资主体

三方一致同意共同合资成立新公司作为陕西省延安市宜川县园光互补项目的主体公司（以下简称“合资公司”），新公司的名称为北京景龙农光科技有限公司（以工商注册登记核准为准）。

公司类型：有限公司

经营期限：长期

三、总投资与资本金出资

三方成立的合资公司拟认缴注册资本 10000 万元，其中甲方认缴 8200 万元，占比 82%；乙方认缴 900 万元，占比 9%，丙方认缴 900 万元，占比 9%；后续根据项目开发进度及资金需求可再行增资，增资金额由各方协商确定。

各方可根据项目进展情况实缴出资，股权比例如下：

股权比例如下：

序号	股东名称	认缴出资额(万元)	股权比例
1	中商普惠控股集团有限公司	8200	82%
2	龙焱能源科技（杭州）有限公司	900	9%

3	新疆景澜鲜果供应链有限责任公司	900	9%

四、合资公司治理与经营

1、合资公司将按照《公司法》和公司章程规定设立董事会和监事，严格按照公司章程运作。

2、设董事会和董事长，董事会由5名董事组成，其中：由甲方提名3名董事，其余各方各提名1名董事，董事经股东会选举产生。董事长由董事会选举产生，任期3年。

3、设立监事会，各股东提名1人。

4、合资公司应组建经营班子，设总经理1名由董事会聘任。财务负责人及其他经营班子成员由总经理提名，由董事会聘任。

五、合作计划

1、本协议签订后，各方应尽快启动内部的流程，倒排工作计划，设立合资公司。

2、各方将按照《第十四届全国政治协商会议提案04533号》的内容、精神，积极推进项目投资的各项事宜，争取早日建设完工。

3、若合资公司注册后12个月内未能取得政府批复的各项手续或因政策变化等不可抗力因素导致项目无法进行的，则将合资公司注销。

六、保密义务

各方对于在合作合资期间获得和知晓的商业秘密（包括

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技术秘密和经营秘密）具有保密义务，未经对方允许，不得以任何方式用于商业活动或向他人披露。

七、违约责任

1、协议各方应对本协议中其所提供的信息的真实性负责，若存在虚假表述，应由违约方承担相应法律责任。

2、因一方或一方提名到合资公司任职人员违反法律法规、合资公司章程或管理制度等导致合资公司损失、资不抵债或者被追究行政、刑事法律责任的，应当赔偿另几方全部经济损失。

3、各方应按照本协议和公司章程的约定按期足额缴付出资，逾期的任何一方（违约方）应当向已足额缴纳的其他各方（非违约方）承担违约责任，每逾期一日，按照应缴纳而未缴纳金额的万分之一向非违约方支付违约金。一方逾期出资经其他各方书面催缴后仍逾期超过[六十（60）]日的，非违约方有权按各方实缴出资额调整持股比例，或有权选择实缴违约方未缴纳注册资本金部分的股权，而后各方持股比例按各方实际缴纳的注册资本金的金额进行相应调整。

八、法律适用和争议解决

1、本协议的订立、效力、解释、履行和争议的解决应受中国法律的管辖，并依其解释。

2、在本协议有效期内，合作各方之间发生的任何争议，

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应当协商解决。若各方经协商未能就争议事项达成一致的，由原告公司注册所在地人民法院管辖。有关费用由败诉方承担，包括但不限于案件受理费、保全费、胜诉方律师费、合理的差旅费等费用。

3、如因不可抗力致使合资公司无法经营或使本协议履行困难甚至无法履行时，遭受不可抗力的一方应立即将情况告知其他几方，根据其对合资公司经营的影响或毁损程度，由各方协商决定是否修改或暂缓执行本协议、或者停止合资公司的经营活动、或者解散合资公司，以尽量避免或减少给双方造成的损失。

九、生效及其他

1、协议各方均已对本协议条款达成一致意见，本协议在协议各方授权代表签字并加盖公章后即刻生效。

2、本协议未尽事宜各方可另签补充协议，补充协议与本协议具有同等效力。

3、本协议一式陆(6)份，双方各执贰(2)份，具有同等效力。

（以下无正文）

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（本页起为《合资协议》的签字页）

甲方：中商普惠控股集团有限公司（公章）

法定代表人/授权代表（签字）：

乙方：龙焱能源科技（杭州）有限公司（公章）

法定代表人/授权代表（签字）：

丙方：新疆景澜鲜果供应链有限责任公司（公章）

法定代表人/授权代表（签字）：梁华

2023 年　　月　　日

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